



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

April 27, 2022

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202004800 regarding Inspector Robert O'Hare, Tax No. 916960 (DADS No. 2022-25405), Police Officer Jonathan Dones, Tax No. 948203 (DADS No. 2022-25404), Police Officer James Shouldis, Tax No. 958068 (DADS No. 2022-25406) and Police Officer Kachun Cheung, Tax No. 963454 (DADS No. 2022-25407)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that the actions of Inspector Robert O'Hare, Police Officer Dones, Police Officer Cheung, and Police Officer Shouldis do not rise to the level of actionable misconduct and similarly do not warrant an imposition of a Schedule "B" Command Discipline. These four uniformed members of the service were effecting lawful arrests stemming from commercial burglaries in the area when they were confronted by two individuals who were outside in direct violation of the Mayor's executive curfew. These two individuals were not essential workers and were thus not exempt from the restrictions of the executive curfew.

Inspector O'Hare, together with Police Officers Dones, Cheung, and Shouldis attempted to stop the two individuals and were met with non-compliance. As a result, for the safety of everyone present at the scene, Inspector O'Hare and Police Officers Dones, Cheung, and Shouldis used the minimum force necessary to affect lawful arrests of the two individuals in question. Given the circumstances surrounding these arrests, and based on the available Body-Worn Camera footage evidence, the actions of Inspector O'Hare and Police Officers Dones, Cheung, and Shouldis were altogether measured, reasonable, and appropriate. In short, the actions of these four uniformed members of the service are not actionable misconduct.

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Therefore, based on the foregoing, the Police Commissioner has determined that Inspector O'Hare, Police Officer Dones, Police Officer Shouldis, and Police Officer Cheung receive no disciplinary action.

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

A handwritten signature in black ink, appearing to be 'L. Soto', with a long horizontal flourish extending to the right.

Lourdes Soto
Inspector
Commanding Officer
Police Commissioner's Office